

Defendant asserts that *Garcia* is good law in light of the discussion of it in *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1132. However, this fails to consider that the California Supreme Court cites *Garcia* as legal authority on compelling arbitration where claims are “intimately founded in and intertwined with” the agreement, but *Soltero* for the authority “that one must be a party to the arbitration agreement either to be bound by or to invoke it.” (*Ford Motor Warranty Cases*, *supra*, 17 Cal.5th at pp. 1128, 1132.) Thus, the California Supreme Court has cited to both cases involved in the split of authority, but has not addressed the split.

Where appellate court decisions are in conflict with one another, then trial courts must choose between the conflicting decisions. (*Auto Equity Sales, Inc. v. Superior Court of Santa Clara County* (1962) 57 Cal.2d 450, 456.) Soltero is more closely aligned with the instant matter. Like in *Soltero*, plaintiff has only named defendant Manulife in the complaint, not the staffing agency, and has asserted Labor Code violations. Here, plaintiff has not named O.F.R. as a defendant in this lawsuit, nor does plaintiff mention his employment with O.F.R. as a basis for liability against the named defendant. Also, here the arbitration agreement at issue was presented as a stand-alone document.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 05/15/26
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: **Swan v. Stoll et al.**
Superior Court Case No. 23CECG00336

Hearing Date: May 19, 2026 (Dept. 502)

Motion: Motion for Leave to Amend x2

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 05/18/26.
(Judge's initials) (Date)